

PROBATE COURT OF FRANKLIN COUNTY, OHIO

JEFFREY D. MACKEY, JUDGE

ESTATE OF _____, DECEASED
CASE NO. _____

APPLICATION TO DISTRIBUTE IN KIND

[R.C. 2113.55]

The fiduciary asks the court to authorize distribution in kind of the property listed on the following schedule.

This property is not specifically bequeathed and is available for distribution.

Regarding the decedent's known debts: **[check one]**

- ☐ The debts have been paid or secured to be paid.
☐ There are sufficient assets in hand beside the property in this application to pay the debts.

Additionally: **[check whichever apply]**

- ☐ All interested persons whose interests may be affected have consented to the proposed distribution.
- ☐ At least one interested person has not consented to the proposed distribution. The fiduciary will give notice as required by law to all nonconsenting persons listed on the notice of hearing accompanying this application.
- ☐ The distribution is to satisfy part or all of the allowance for support due to: **[check whichever apply]**
- ☐ the decedent's surviving spouse
☐ the decedent's minor children
- ☐ The surviving spouse has signed their consent on Page 2 of this form. The distribution will satisfy at least part of the specific monetary share due to the surviving spouse under the Statute of Descent and Distribution, as shown below:

Specific monetary share due to surviving spouse: \$ _____

Minus:

Value of property proposed to be distributed in kind \$ _____
and

Value of probate assets previously received by the \$ _____
surviving spouse beyond the support allowance

Balance of specific monetary share remaining: \$ _____

Fiduciary

SCHEDULE OF PERSONAL PROPERTY TO DISTRIBUTE IN KIND

Item	Distributee	Appraised Value

CONSENT TO DISTRIBUTION IN KIND

The undersigned, including the decedent's surviving spouse and/or other interested persons, hereby give consent to the distribution as described above.

Surviving Spouse

